

**HOUSE SUBSTITUTE FOR
SENATE BILL NO. 82**

A bill to protect the safety of judges and certain other individuals; to protect certain information of judges and certain other individuals from disclosure; to provide for the powers and duties of certain state and local governmental officers and certain other people and entities; and to provide remedies.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1. This act may be cited as the "judicial protection
2 act".

3 Sec. 2. As used in this act:

4 (a) "Immediate family member" means any of the following whose
5 permanent residence is the same as the judge's permanent residence:

6 (i) The judge's spouse.

7 (ii) The judge's child.



(iii) The judge's parent.

(iv) Any other familial relative of a judge.

(b) "Judge" means any of the following:

(i) A state court judge, which includes only a judge or justice who is serving by election or appointment on the district court, probate court, circuit court, court of appeals, or supreme court of this state.

(ii) A federal judge as that term is defined in the Daniel Anderl judicial security and privacy act of 2022, Public Law 117-263, or a senior, recalled, or retired federal judge, and who serves, served, or has a residential address in this state.

(iii) A judge serving on a tribal court for a federally recognized tribe located in this state.

(c) "Person" means an individual, corporation, limited liability company, partnership, firm, organization, association, or other legal entity but does not include a public body.

(d) "Personal identifying information" means any 1 or more of the following:

(i) Except as provided in section 3(5), date of birth.

(ii) Except for the city and township of residence, permanent residential address.

(iii) Address of other real property owned and regularly used as a dwelling or for recreation by a judge or a judge's immediate family member.

(iv) Home or cellular telephone number.

(v) State identification number or driver license number.

(vi) Social Security number.

(vii) Personal email address.



(viii) Federal or state tax identification number.

(ix) Personal credit, charge, or debit card information.

(x) Bank account information, including account or PIN numbers.

(xi) License plate number or other unique identifier of a vehicle that is owned, leased, or regularly used by a judge or a judge's immediate family member.

(xii) Current or future school or day-care information including, but not limited to, the name or address of the school or day care attended, schedule of attendance, or route taken to or from the school or day care by a judge or a judge's immediate family member.

(xiii) Information on the employment location, except a court house, of a judge or a judge's immediate family member including the address of the employer, employment schedules, or routes taken to or from the employer.

(e) "Public body" means any of the following:

(i) A state officer, employee, agency, department, division, bureau, board, commission, council, authority, or other body in the executive branch of the state government, but does not include the governor or lieutenant governor, the executive office of the governor or lieutenant governor, or employees of the governor or lieutenant governor.

(ii) An agency, board, commission, or council in the legislative branch of the state government.

(iii) A county, city, township, village, intercounty, intercity, or regional governing body, council, school district, special district, or municipal corporation, or a board, department, commission, council, or agency.



(iv) Except as provided under subparagraph (v), any other body that is created by state or local authority or is primarily funded by or through state or local authority, except that the judiciary, including the office of the county clerk and its employees when acting in the capacity of clerk to the circuit court, is not included in the definition of public body.

(v) If approved by the supreme court, the judiciary.

(f) "Publicly post or display" means to communicate or otherwise make personal identifying information available to the general public.

(g) "Residential address" means the place that is the settled home or domicile at which an individual legally resides and is a residence as that term is defined in section 11 of the Michigan election law, 1954 PA 116, MCL 168.11.

(h) "Transfer" means to sell, license, trade, or exchange for consideration the personal identifying information of a judge or judge's immediate family member.

Sec. 3. (1) A judge may request that a public body or person not publicly post or display the personal identifying information of a judge or a judge's immediate family member.

(2) A judge may submit a written request, on a form prescribed by the state court administrative office, to a public body or person to remove a public posting or display of personal identifying information of the judge or the judge's immediate family member. The form must include both of the following:

(a) Proof of the judge's office and identity.

(b) The personal identifying information of the judge or the judge's immediate family member that the judge desires to protect.

(3) A written request provided to a public body or person



1 under subsection (2) remains in force and effect until the judge
2 provides a signed written request to rescind or modify the prior
3 request, or until the judge dies, whichever occurs first.

4 (4) On the written delegation of authority by a state court
5 judge as that term is defined in section 2(b)(i) to the state court
6 administrative office, the state court administrative office may
7 submit a written request to a public body or person on behalf of a
8 judge under subsection (2). A written request under this subsection
9 must be given the same force and effect as a written request
10 submitted by a judge.

11 (5) To comply with section 19 of article VI of the state
12 constitution of 1963, a judge's date of birth may be obtained by
13 any person by contacting the state court administrative office.

14 (6) A written request provided to the office of the county
15 register of deeds must include a list of all instruments to be
16 protected by liber and page or other unique identifying number.

17 Sec. 4. (1) Except as otherwise provided, a public body that
18 has received a request under section 3 shall not publicly post or
19 display or provide to a person the specified personal identifying
20 information of a judge or a judge's immediate family member, as
21 applicable. A public body that has already publicly posted or
22 displayed the specified personal identifying information shall
23 remove the personal identifying information not later than 5
24 business days after receiving the request. This act does not
25 require a public body to permanently delete personal identifying
26 information that is not accessible to the public.

27 (2) Except as otherwise provided, a person that has received a
28 request under section 3 shall not publicly post or display or
29 transfer the specified personal identifying information of a judge



1 or a judge's immediate family member, as applicable. A person that
2 has already publicly posted or displayed the personal identifying
3 information shall remove the personal identifying information not
4 later than 5 business days after receiving the request.

5 (3) A public body may comply with the requirements of this
6 section by redacting the specified personal identifying information
7 that is publicly posted or displayed or by masking the entire
8 contents of a document or record that contains the specified
9 personal identifying information. This section does not alter or
10 amend a public body's obligations under the freedom of information
11 act, 1976 PA 442, MCL 15.231 to 15.246.

12 Sec. 5. This act does not apply to any of the following:

13 (a) The display of the personal identifying information of a
14 judge or a judge's immediate family member if the information is
15 relevant to and displayed as part of a news story, commentary,
16 editorial, or other speech on a matter of public concern.

17 (b) After the effective date of this act, personal identifying
18 information voluntarily published by the judge or the judge's
19 immediate family member.

20 (c) The dissemination of personal identifying information made
21 at the request of the judge or judge's immediate family member or
22 that is necessary to effectuate the request of the judge or judge's
23 immediate family member.

24 (d) The use of personal identifying information internally to
25 provide access to businesses under common ownership or affiliated
26 by corporate control, or to sell or provide data for a transaction
27 or service requested by or that concerns the individual whose
28 personal identifying information is being transferred.

29 (e) The provision of publicly available personal identifying



1 information by a real-time or near-real-time alert service for a
2 health or safety purpose, including, but not limited to, an Amber
3 alert issued under the Michigan Amber alert act, 2002 PA 712, MCL
4 28.751 to 28.755.

5 (f) The use of personal identifying information by a consumer
6 reporting agency subject to the fair credit reporting act, 15 USC
7 1681 to 1681x.

8 (g) The use of personal identifying information by a
9 commercial entity engaged in the collection, maintenance,
10 disclosure, sale, communication, or use of personal identifying
11 information bearing on a consumer's credit worthiness, credit
12 standing, credit capacity, character, general reputation, personal
13 characteristics, or mode of living by a consumer reporting agency,
14 furnisher, or user that provides personal identifying information
15 for use in a consumer report, and by a user of a consumer report,
16 but only to the extent that such activity is regulated by and
17 authorized under the fair credit reporting act, 15 USC 1681 to
18 1681x.

19 (h) The use of personal identifying information by a
20 commercial entity using personal identifying information that was
21 collected, processed, sold, or disclosed in compliance with the
22 driver's privacy protection act of 1994, 18 USC 2721 to 2725.

23 (i) The use of personal identifying information subject to the
24 Gramm-Leach-Bliley act, 15 USC 6801 to 6809.

25 (j) The use of personal identifying information by a financial
26 institution, 1 or more of a financial institution's affiliates, or
27 an independent contractor acting on behalf of a financial
28 institution or a financial institution's affiliates, subject to the
29 Gramm-Leach-Bliley Act, 15 USC 6801 to 6809.



1 (k) The use of personal identifying information by an entity
2 covered by the privacy regulations promulgated under section 1320d-
3 2(c) of the health insurance portability and accountability act of
4 1996, 42 USC 1320d-2.

5 (l) Except as otherwise provided in this subdivision, the use
6 of personal identifying information by a commercial entity to do
7 any of the following: prevent, detect, protect against, or respond
8 to security incidents, identity theft, fraud, harassment, malicious
9 or deceptive activities, or any illegal activity; preserve the
10 integrity or security of systems; or investigate, report, or
11 prosecute any person responsible for any such action. A commercial
12 entity that uses personal identifying information to do any of the
13 activities described in this subdivision shall not disseminate the
14 personal identifying information to the public or publicly post or
15 display the personal identifying information.

16 (m) The collection and sale or licensing of personal
17 identifying information incidental to conducting the activities
18 under subdivisions (a) to (l).

19 (n) Nothing in this section prohibits a public body from
20 providing access to records that contain the personal identifying
21 information of a judge or judge's immediate family member to a
22 person when the access is incidental to conducting the activities
23 under subdivisions (a) to (l).

24 (o) The display of a property address on a real estate or
25 mapping platform when the address is not displayed or disclosed in
26 connection with any ownership or occupancy information or other
27 personal identifying information of a judge or a judge's immediate
28 family member.

29 (p) The use and display of personal identifying information



1 required under the sex offenders registration act, 1994 PA 295, MCL
2 28.721 to 28.730.

3 Sec. 6. Any personal identifying information covered by a
4 written request under section 4(1) is exempt from disclosure under
5 section 13(1)(d) of the freedom of information act, 1976 PA 442,
6 MCL 15.243, by the public body that received the written request.

7 Sec. 7. (1) If 5 business days after a public body or a person
8 has received a written request under section 3 the public body or
9 person is not in compliance with this act, the judge or the judge's
10 immediate family member may commence a civil action to compel
11 compliance or to enjoin further noncompliance with this act.

12 (2) An action for injunctive relief against a local public
13 body or person must be commenced in the circuit court, and venue is
14 proper in any county in which the judge serves. An action for an
15 injunction against a state public body must be commenced in the
16 court of claims. If a judge or a judge's immediate family member
17 commences an action for injunctive relief, the judge or the judge's
18 immediate family member is not required to post security as a
19 condition for obtaining a preliminary injunction or a temporary
20 restraining order.

21 (3) An action for mandamus against a public body under this
22 act must be commenced in the court of appeals.

23 (4) If a public body or person is not complying with this act,
24 and a judge or a judge's immediate family member commences a civil
25 action against the public body or person for injunctive relief to
26 compel compliance or to enjoin further noncompliance with this act
27 and succeeds in obtaining relief in the action, the judge or
28 judge's immediate family member must recover court costs and actual
29 attorney fees for the action.



1 (5) It is not a defense to a violation of this act that the
2 personal identifying information disclosed was publicly available
3 from another source.

4 Sec. 8. This act must be construed liberally to effectuate the
5 legislative intent and the purpose of this act as complete and
6 independent authorization for the performance of each and every act
7 and thing authorized in the act, and all powers granted in this act
8 must be broadly interpreted to effectuate the intent and purpose of
9 this act and not as to limitation of powers.

10 Enacting section 1. This act takes effect 180 days after the
11 date it is enacted into law.

12 Enacting section 2. This act does not take effect unless House
13 Bill No. 4397 of the 103rd Legislature is enacted into law.